ONE INTEGRATED FRAMEWORK FOR ALL YOUR DISCOVERY DATA

Work Order 207046-TO	Date 02/22/2007

This Work Order is entered into by and between IDBS and InterMune Brisbane, CA (the CLIENT).

A **Ownership of Property and Proprietary Rights/Confidentiality**

All deliverables described in this Work Order will be Type II Work Products, available for use by both InterMune and IDBS according to following terms:

Type II Work Product shall be deemed to be the exclusive property of IDBS. CLIENT shall be granted, at no cost, the right to use and modify such Work Product independently of IDBS. CLIENT shall not at any time, in any manner, during or after the term of this Agreement, under any circumstances, be entitled to or claim any right, title or interest herein or any commission, fee or other direct or indirect benefit from IDBS, in respect of a Type II Work Product. IDBS may use such Work Product wherever and whenever it chooses, and shall be able to abstract all or any part of such Work Product developed, for its own use or for the purposes of resale to its general customer base, but excluding any information containing CLIENT Confidential Information or data.

B **Description of Services and Estimates**

As part of the ActivityBase implementation, an IDBS consultant will install the database, migrate compound data, build protocols and templates, create some example queries and train users. A test and a production instance of the ActivityBase database will be created and populated with the necessary basic data dictionary terms, roles and users. Approximately 2,000 compounds will be imported from an SD file into the system. About 5 protocols and templates will be created. If necessary, the IDBS consultant will configure SARview6 and ActivityBase to allow querying on custom fields or other Oracle databases. 21 users will be trained to use the system including 2 administrators.

C **Deliverables**

IDBS will provide the following:

- Installation of ActivityBase database
- Guidance selecting the appropriate system settings and populating the initial data dictionary values including users and roles
- Installation of the client software on 2-3 pcs
- Guidance selecting the most appropriate fields and system settings to use for compound data management
- Import of 2,000 to 10,000 compounds from an SD file into ActivityBase
- Assistance creating some standard SAR queries and reports including mapping to other databases if necessary
- Configure custom ActivityBase Compound Detail form to display desired data including configuration of a BioData view if necessary
- Gather requirements and build 4 protocols and templates similar to the CC50 and Enzyme IC50 examples provided in December 2006
- Gather requirements and build a Kinetics template with a custom import definition and the ability to select the linear range before further analysis.
- Create a replicate copy of the ActivityBase database for training and testing
- Install the standard ActivityBase training database
- Train 2 Administrators on the standard LTE / HTE Designer and XLFit Designer courses
- Train 7 Biology End Users on the standard course content Introduction to ActivityBase, LTE / HTE End User and demonstrate the InterMune protocols and templates
- Train 5 Chemistry Users on the standard Chemistry Class
- Train 21 Users in 2 sessions on SARview6 basics and querying
- General project management and off-site preparation

D **Work Breakdown**

TASK	DAYS	CATEGORY	COST
PROJECT MANAGEMENT	2.5	PROJECT MANAGEMENT	$2200/DAY
DATABASE INSTALLATIONS AND ROLLOVER	1.0	GENERAL	$1850/DAY
DATA DICTIONARY	1.0	GENERAL	$1850/DAY
SAR QUERIES	1.0	GENERAL	$1850/DAY
COMPOUND IMPORT	2.0	GENERAL	$1850/DAY
SP AND DR PROTOCOL AND TEMPLATE DEVELOPMENT	4.5	GENERAL	$1850/DAY
KINETICS PROTOCOL AND TEMPLATE	4.0	GENERAL	$1850/DAY
PLATE LIBRARY IMPORT	0.0	(NOT NECESSARY)	
ADMIN TRAINING	4.0	4.0 OF TRAINING	$1850/DAY PLUS $275/TRAINEE/DAY
BIOLOGY END USER	1.0	1.0 OF TRAINING	$1850/DAY PLUS $275/TRAINEE/DAY
CHEMISTRY END USER	1.0	1.0 OF TRAINING	$1850/DAY PLUS $275/TRAINEE/DAY
SAR END USER	2.0	2.0 OF TRAINING	$1850/DAY PLUS $275/TRAINEE/DAY

E Client Responsibilities

InterMune will be responsible for the following:

- Provide the necessary supporting hardware and software
- Provide access to the Oracle database via a SYS login
- Provide access to an InterMune personnel with network administrator rights for fileserver creation and client software installation
- Provide access to the appropriate InterMune personnel for each protocol and template, both prior to and during the on-site work. InterMune personnel should expect to spend some time in internal discussions of requirements as well as provide appropriate data files and data sets for testing.
- Provide access to appropriate personnel for chemistry data migration, both prior to and during the on-site work. InterMune personnel should expect to spend some time in internal discussions of requirements as well as create an SD file for import.
- Provide a training room with the necessary equipment and database connectivity for one instructor and 5 to 10 trainees including overhead projector. Each trainee should have their own pc.

F Fees, Expenses, and Billing Schedule of Consultancy Services

Fees

Time and Materials

Service Type	Details	Cost
General Consultancy	13.5 days x $1850/day	$24,975
Project Management	2.5 days x $2200/day	$5,500
Training	8 days x $1850/day	$14,800
	41 trainee fees x $275/day/trainee	$11,275
Total Estimated Cost of Services		**$56,550**

This consulting rate is valid for services delivery during normal operating hours, Monday through Friday 9am-5pm. Additional fees may apply for work conducted outside of these hours, and any such work must be approved by both parties in advance via a change order.

Expenses

All necessary expenses including postage, travel, hotel & subsistence will be fully reimbursable to IDBS at cost.

Billing Schedule

Expenses, if relevant, will be invoiced on a monthly basis.

Supplemental invoices for additional/modified services will be issued and paid as agreed between IDBS and the CLIENT in subsequent work orders or change requests.

G Terms and Conditions

1. The prices and terms presented in this work order are valid for 30 days.
2. All prices are exclusive of any sales, state, federal and customs taxes, which will be charged at the applicable rates.
3. Payment terms are 30 days from invoice. All Services are to be paid for in advance and will expire 12 months from the date of the purchase order. On-site training is subject to a minimum charge equivalent to the cost of a single day of consultancy.
4. Cancellation charges for any services: -

greater than 5 days	-	no charge;
within 5 days	-	50% of fee;
within 24 hours	-	100% of fee.

H Signatories

This Work Order is duly acknowledged and accepted by the persons below on behalf of IDBS and CLIENT as follows: -

	IDBS		CLIENT
Signed:		Signed:	
Name		Name:	
Position:		Position:	
Date:		Date:	